

their proposed amended complaint.

Conclusion

“[I]t is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’” (*Morgan*, supra, 172 Cal.App.2d at 530.) It is also “error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Ibid.*)

Plaintiffs’ motion for leave to amend is **granted**. Plaintiffs shall file the First Amended Complaint within 10 days of service of notice of entry of this order.

14. 9:00 AM CASE NUMBER: C25-02623
CASE NAME: LOGAN WILSON VS. CONTRA COSTA COUNTY,
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CONTRA COSTA COUNTY,
TENTATIVE RULING:

Defendant Contra Costa County’s demurrer is **overruled as to cause of action one and sustained with leave to amend as to cause of action three**. Plaintiff has ten days from the notice of entry of this order to file a first amended complaint.

Plaintiff was injured when he fell 16.3 feet off a pedestrian bridge. The bridge railing did not meet minimum height requirements for safety and the side Plaintiff fell from lacked any guardrail. The bridge is privately owned and located immediately next to Hap Magee Ranch Park in Danville. There was no signage, fencing, barriers or other warnings to alert Plaintiff that he was leaving the park or that the bridge presented hazards. (Comp. ¶1.)

Plaintiff alleges that the park was jointly owned and operated by Contra Costa County and the Town of Danville, which are alleged to be public entities. (Comp. ¶¶1, 5.) The bridge was owned, operated and maintained by Ludden Gerald Francis, Watson Nancee and the Gerald F. Ludden and Nancee Watson Trust. (Comp. ¶1.)

Plaintiff sued for (1) dangerous condition of public property (public entity defendants), (2) premises liability (private defendants) and (3) negligence (all defendants). The County filed this demurrer to causes of action one and three, arguing that the facts alleged are insufficient to state a cause of action under Code of Civil Procedure section 430.10(e).

Dangerous Condition of Public Property (c/a 1)

The County argues that the dangerous condition of public property claim fails because (1) the County did not own or control the bridge and (2) the County is immune under Government Code section 830.2.

Adjacent property liability

A claim for dangerous condition of public property is permitted under Government Code section 835. “Section 835 provides that a public entity may be held liable for such injuries “if the plaintiff establishes [(1)] that the property was in a dangerous condition at the time of the injury, [(2)] that the injury was proximately caused by the dangerous condition, [and] [(3)] that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred.” In addition, the plaintiff must establish [(4)] that either: (a) “[a] negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition . . . ,” or (b) “[t]he public entity had . . . notice of the dangerous condition . . . a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” [Citation.]” (*Thimon v. City of Newark* (2020) 44 Cal.App.5th 745, 753.)

A dangerous condition of public property is defined in Government Code section 830. “‘Dangerous condition’ means a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Gov. Code 830(a).) Section 830 provides that “‘Property of a public entity’ and ‘public property’ mean real or personal property owned or controlled by the public entity...” (Gov. Code section 830(c).)

Here it is alleged that the private defendants owned and controlled the bridge and that the County owned and controlled the park, next to the bridge. In its moving papers, the County cites only to the Law Revision Comments for section 830 to discuss when there is a dangerous condition based upon conditions at an adjacent property. In reply, the County cited to new cases; the County should have provided these citations in its moving papers. Further, *Hedayatzadeh v. City of Del Mar* (2020) 44 Cal.App.5th 555 and *Avery v. County of Santa Clara* (1968) 257 Cal.App.2d 708 were decided on summary judgment, not demurrer.

The Law Revision Comments for section 830 provide guidance on when there is a dangerous condition on public property due to conditions on an adjacent property. “[A] a public entity cannot be held liable for dangerous conditions of ‘adjacent property.’ A public entity may be liable only for dangerous conditions of its own property. But its own property may be considered dangerous if it creates a substantial risk of injury to adjacent property or to persons on adjacent property; and its own property may be considered dangerous if a condition on the adjacent property exposes those using the public property to a substantial risk of injury.” (Gov. Code section 830 Law Revision Comments.)

The Law Revision Comments provide the following examples: “A tree located on public property may have a decayed limb overhanging private property and creating a hazard to that property and the persons on it. Explosives on public property may create a hazard to a wide area of private property adjacent to the public property.” (*Ibid.*)

In opposition, Plaintiff cites to several cases, including *Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal.4th 139. The California Supreme Court addressed when there is a dangerous condition where the actual danger is located on an adjacent property. The Supreme Court

explained that “public property has also been considered to be in a dangerous condition ‘because of the design or *location* of the improvement, the interrelationship of its structural or natural features, or the presence of latent hazards associated with its normal use.’ [Citation.]... [T]he Courts of Appeal have, consistent with the Law Revision Commission comment, recognized that hazards present on adjoining property may create a dangerous condition of public property when users of the public property are necessarily exposed to those risks.” (*Id.* at 149.)

In *Bonanno*, the plaintiff was injured when she attempted to cross a busy street to reach a bus stop. The Court held that the transportation agency was liable because of the location of its bus stop, even though the accident did not occur on land owned or controlled by the agency. *Bonanno* provided several examples of when a public entity can be held liable due to a dangerous condition on an adjacent property: a city street next to railroad tracks where children often crossed the tracks after school; an uninsulated electrical wire next to a model airplane park was dangerous because of the known uses of the park (running after a model airplane); and an otherwise non-defective sidewalk was dangerous because of demolition of an adjacent building that left an eight foot drop. (*Id.* at 149-150.)

Here, Plaintiff alleged that the bridge was unsafe due to a low railing on one side and lack of a railing on the other side. The bridge was directly next to the park and functioned as an apparent pathway to and from the Subject Park. (Comp. ¶121.) The County did not warn of the dangerous condition of the bridge or create barriers or fencing to prevent access to the bridge. (Comp. ¶138.)

City and county parks are regularly used by pedestrians and people often use parks for walking. In this case it is alleged that there was a dangerous bridge next to the park, which appeared to be part of the park. This situation, whether by design or interrelationship of its features, exposed pedestrians in the park to the dangerous bridge. The Court finds that Plaintiff has sufficiently alleged a claim for dangerous condition of public property against the County based upon the County’s park being located next to an unsafe pedestrian bridge, which was an apparent pathway to and from the park.

Immunity

The County also argues that it is immune under Government Code section 830.2. “A condition is not dangerous ‘if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, trivial, or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property or adjacent property was used with due care in a manner in which it was reasonably foreseeable that it would be used.’ ([Gov. Code] § 830.2.)” (*Cordova v. City of Los Angeles* (2015) 61 Cal.4th 1099, 1105.)

The County argues that it is not liable because its failure to provide barriers or signage is minor, trivial or insignificant. The Court disagrees. The alleged dangerous condition is a pedestrian bridge without a railing on one side next to a 16-foot drop. The County’s failure to provide barriers or signage is not minor, trivial or insignificant.

The demurrer to cause of action one is overruled.

Negligence (c/a 3)

The County argues that the negligence claim fails because Plaintiff has not alleged a statutory basis for liability against the county. Plaintiff does not dispute that he needs to allege a statutory basis for liability against the County, but asks for leave to amend. Plaintiff argues that he can use his DOE allegations to include the responsible County employee.

It may be possible for Plaintiff to add a County employee as a DOE defendant, however, additional allegations supporting liability against the County will be needed. As the County points out in reply, Plaintiff will need to identify the statutory basis for liability against the County and allege facts supporting liability with particularity. (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802; *Lopez v. Southern Cal. Rapid Transit District* (1985) 40 Cal.3d 780, 795.)

The demurrer to cause of action three is sustained with leave to amend.

15. 9:00 AM CASE NUMBER: C25-02730
CASE NAME: TADEUSZ WYRZYKOWSKI VS. CSW CONSTRUCTION GROUP
***HEARING ON MOTION IN RE: STRIKE DECLARATION**
FILED BY: WYRZYKOWSKI, TADEUSZ
TENTATIVE RULING:

Before the Court is Plaintiff's Motion to Strike Declaration.

Plaintiff's Motion is **denied** as set forth below.

Procedural History

Plaintiff filed his Complaint on September 29, 2025. The operative First Amended Complaint (FAC) was filed on October 20, 2025. On December 1, 2025, Defendant filed a Declaration of Demurring Party in Support of Automatic Extension – the declaration at issue in this motion. On December 8, 2025, Plaintiff filed a Proof of Service of Summons that asserts that the summons, complaint, and FAC were personally served on Defendant on October 18, 2025.

On January 20, 2026, Plaintiff filed a Request for Entry of Default on the Complaint filed on September 29, 2025. The Default was entered on that same date. On January 23, 2026, Defendant filed a motion to set aside the default. On January 26, Plaintiff filed a motion to sustain default, as well as the instant motion to strike the December 1 declaration by Defendant's counsel.

On April 30, the Court granted Defendant's motion to set aside the default. On May 7, the Court denied Plaintiff's motion to sustain the default.

Analysis

Initially, it is unclear upon what legal authority Plaintiff bases his motion to "strike declaration." While Plaintiff cites various federal, state, civil, and criminal codes, he does not explain how any of them